

2026:PHHC:086403



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**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-32340-2026
Decided On: 01.06.2026**

LOVEPREET SINGH @ LABBU**....PETITIONER(S)****VERSUS****STATE OF PUNJAB****....RESPONDENT(S)****Present:** Mr. Saksham Malhotra, Advocate for the petitioner

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1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No. 0252 dated 13.09.2025 under Section 25 of the Arms Act, 1959 registered at Police Station Gate Hakima, District Amritsar.

2. Contention**On behalf of the petitioner**

Learned counsel for the petitioner submits that although the Registry has noted that the petitioner had earlier approached this Court by filing CRM-M-73085-2025, the said petition was instituted through a different counsel and came to be dismissed for non-prosecution vide order dated 20.01.2026. He contends that such dismissal cannot be construed as a dismissal on merits, inasmuch as there was no adjudication either on the factual aspects of the case or on the legal issues arising from the FIR in question.

Consequently, the present petition is maintainable and deserves to be considered independently on its own merits.

Learned counsel further submits that the petitioner has been falsely implicated in the present case. He argues that no incriminating recovery has been effected from the petitioner and that it is not even the prosecution's case that any injury was caused to any person at his instance. In the absence of any specific overt act attributed to the petitioner and keeping in view the nature of the allegations levelled against him, counsel contends that custodial interrogation is unwarranted and that the petitioner is entitled to the concession of anticipatory bail.

Notice of motion.

On behalf of the State/Complainant

On the asking of Court, Mr. Siddharth Sandhu, AAG Punjab, accepts notice on behalf of respondent/State. He does not dispute the contention raised on behalf of the petitioner that no recovery has been effected from the petitioner and that no injury has been caused to any person at his instance. He, however, submits that one 32 bore pistol along with two live cartridges was recovered during the course of investigation, though the said recovery was effected from the possession of co-accused Lovepreet Singh and not from the petitioner.

4. Analysis

Considering the fact that no recovery has been effected from the petitioner and it is not the case of the prosecution that any further recovery is required to be effected from his possession, coupled with the absence of any specific role attributed to him from a bare perusal of the FIR, this Court is of the *prima facie* view that his custodial incarceration would not serve any useful

purpose. The petitioner has undertaken, in para 9 of the petition, to join and cooperate with the investigation as and when required. Moreover, there is no material on record to indicate that he is likely to abscond, influence witnesses, or tamper with the prosecution evidence. In such circumstances, this Court finds no justification to deny the petitioner the concession of anticipatory bail.

5. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period

of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

01.06.2026
NainaRajput

<i>Whether speaking/reasoned</i>	<i>:Yes/No</i>
<i>Whether reportable</i>	<i>:Yes/No</i>